

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chris Duerr	Team: Squad #12	CCRB Case #: 201409312	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/09/2014 9:00 PM	Location of Incident: Junction Boulevard and 55th Avenue	18 Mo. SOL 3/9/2016	Precinct: 110		
Date/Time CV Reported Wed, 09/10/2014 1:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/09/2014 10:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Robert Carbone	2615	945552	GANG Q
2. POM Gregory Tloczkowski	01687	945055	GANG Q
3. POM Jared Rothschild	4298	931105	GANG Q

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Robert Carbone	Abuse: Det. Robert Carbone stopped the car in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Gregory Tloczkowski	Abuse: PO Gregory Tloczkowski stopped the car in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Jared Rothschild	Abuse: PO Jared Rothschild stopped the car in which § 87(2)(b) was an occupant.	C . Substantiated
D . DT3 Robert Carbone	Abuse: Det. Robert Carbone questioned § 87(2)(b)	D . Substantiated
E . POM Jared Rothschild	Abuse: PO Jared Rothschild frisked § 87(2)(b)	E . Substantiated
F . POM Jared Rothschild	Abuse: PO Jared Rothschild searched § 87(2)(b)	F . Substantiated
G . POM Gregory Tloczkowski	Abuse: PO Gregory Tloczkowski searched the car in which § 87(2)(b) was an occupant.	G . Substantiated
§ 87(4-b) § 87(2)(g)		

Case summary

On September 9, 2014, at approximately 9:00 p.m., § 87(2)(b) was driving down 55th Avenue near Junction Boulevard in Queens looking for a parking space when he observed police lights on an unmarked RMP behind him and immediately pulled over (**Allegations A, B and C**). § 87(2)(b) could not see the make or model of this vehicle because the lights were shining in his eyes; however he recorded the license plate number § 87(2)(e), § 87(2)(b) and believed the vehicle was silver and not an SUV.

Det. Robert Carbone, of Gang Squad Queens, approached § 87(2)(b)'s window, while PO Gregory Tloczkowski, also of Gang Squad Queens, approached the passenger side window. Det. Carbone requested § 87(2)(b)'s ID, who complied and provided it. Det. Carbone then asked § 87(2)(b) if he had anything in his car and if he had ever been arrested (**Allegation D**). In response, § 87(2)(b) asked if he was only pulled over to be asked these questions. Det. Carbone asked § 87(2)(b) to get out and walk to the back of his car. Det. Carbone did not run § 87(2)(b)'s ID and returned it when § 87(2)(b) got back to the car.

An officer then asked § 87(2)(b) to turn around and place his hands on his car. § 87(2)(b) complied and PO Jared Rothschild (who has since been promoted to detective but will be referred to as the rank he held on the date of the incident), also of Gang Squad Queens, patted § 87(2)(b) down on his back, armpits, waist, pockets, crotch, and then his legs to his ankles (**Allegation E**). After that, PO Rothschild placed his hands inside of § 87(2)(b)'s pockets but did not remove any of their contents (**Allegation F**).

§ 87(2)(b) was then instructed to turn around so that his back was facing his car. § 87(2)(b) complied and while Det. Carbone remained on § 87(2)(b)'s left and PO Rothschild on his right, PO Tloczkowski searched his car (**Allegation G**). § 87(2)(b) turned around a few times to look at PO Tloczkowski through the back car window. § 87(2)(b) saw PO Tloczkowski open his glove compartment, the arm rest and look inside the side compartments of his car.

After PO Tloczkowski finished searching the car, the officers let § 87(2)(b) leave. He was not issued any summonses.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined mediation § 87(2)(b)

On March 6, 2015, the New York City Comptroller's Office notified the CCRB that § 87(2)(b) had not filed a notice of claim (encl. N-1-N-2).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Documents

No police documentation regarding this incident could be located such as a Stop, Question and Frisk report (encl. P1 and P16), record of a warrant check (encl. P-17) or a relevant Event Summary (encl.H1).

Officer and Civilian CCRB Histories

- Det. Carbone has been a member of the service for 7 years and has two prior CCRB cases where no allegations were substantiated. § 87(2)(g)
- PO Rothschild has been a member of the service for 12 years and has three other cases where various allegations were unsubstantiated or exonerated § 87(2)(g)
- PO Tloczkowski has been a member of the service for 7 years and this is the first CCRB complaint filed against him (encl. A-3).
- § 87(2)(b) has made three prior CCRB complaints (encl. A-4).
 - § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) recorded the license plate number of the vehicle that the officers were driving as § 87(2)(e). § 87(2)(b). According to NYPD Fleet Services Division, this vehicle, a blue Dodge Avenger #§ 87(2)(e), was assigned to Gang Squad Queens (encl. P-3).
- The tactical plan of the Gang Squad Queens, on September 9, 2014, shows that Det. Carbone, PO Rothschild and PO Tloczkowski were assigned to vehicle 1766 (encl. I-1). During their interviews, Det. Carbone, PO Rothschild and PO Tloczkowski confirmed that they were assigned to vehicle § 87(2)(b).
- § 87(2)(b) described the officer who questioned him as a white male in his late 20s or early 30s, 5'9" tall, 180 pounds with black hair. This is consistent with the physical pedigree information of Det. Carbone. § 87(2)(b) described the officer who searched him as a white male, in his mid to late 30s, 280 pounds, heavy-set and bald. This is consistent with the physical pedigree information of PO Rothschild. § 87(2)(b) described the officer who searched his car as a white male, in his mid to late 30s, 6'2" tall, 180-200 pounds. This is consistent with the physical pedigree information of PO Tloczkowski.
- The unmarked vehicle utilization record notes that Det. Carbone took out vehicle § 87(2)(b) on September 9, 2014, at 5:30 p.m. and returned it on September 10, 2014, at 12:10 a.m. The record does not indicate any vehicle switches. (encl L-2).
- None of the officers interviewed recognized § 87(2)(b) from a photo, recalled the incident or had entries in their memo books regarding the incident.
 - Det. Carbone has a memo book entry at 5:30 p.m. that states he resumed patrol within the confines of the 110th Precinct with PO Rothschild and PO Tloczkowski in RMP § 87(2)(b). The next entry states that an arrest was made by PO Tloczkowski at 9:30 p.m.

- PO Rothschild has a memo book entry at 5:30 p.m. that states he resumed patrol in vehicle § 87(2)(b). His next entry is the arrest made by PO Tloczkowski at 9:30 p.m.
- PO Tloczkowski has a memo book entry at 5:27 p.m. that states he was present for duty at Gang Squad Queens. His next entry states that he was in RMP § 87(2)(b) within the confines of the 110th Precinct and stopped a car and arrested an individual at 9:30 p.m.
- These memo book entries not only confirm that the officers were all in RMP § 87(2)(b) within the confines of the 110th Precinct - the precinct of occurrence - during the date and time of the incident, but are consistent in that there were no entries included between approximately 5:30 p.m. and 9:30 p.m. § 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]
- On March 27, 2015, a photo array was conducted with § 87(2)(b) at the CCRB in an attempt to verify the subject officers (encl. D-6-D-8). § 87(2)(b) was presented with three photo arrays, each array containing Det. Carbone, PO Tloczkowski or PO Rothschild. During the photo array, § 87(2)(b) was unable to positively identify any of the three officers and only selected fillers, however, the fillers that he selected looked similar to Det. Carbone, PO Tloczkowski and PO Rothschild in terms of weight, age and facial features.

Allegation A-Abuse of Authority: Det. Robert Carbone stopped the car in which § 87(2)(b) was an occupant.

Allegation B-Abuse of Authority: PO Gregory Tloczkowski stopped the car in which § 87(2)(b) was an occupant.

Allegation C-Abuse of Authority: PO Jared Rothschild stopped the car in which § 87(2)(b) was an occupant.

Allegation D-Abuse of Authority: Det. Robert Carbone questioned § 87(2)(b)

Allegation E-Abuse of Authority: PO Jared Rothschild frisked § 87(2)(b)

Allegation F-Abuse of Authority: PO Jared Rothschild searched § 87(2)(b)

Allegation G-Abuse of Authority: PO Gregory Tloczkowski searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) was interviewed at the CCRB on September 25, 2014, (encl. D-1-D-5) and alleged that he was pulled over by two officers fitting the descriptions of Det. Carbone, who approached his driver's side window and PO Tloczkowski, who approached the passenger side. Det. Carbone asked § 87(2)(b) if he had anything in his car and ordered him to exit his vehicle. § 87(2)(b) was escorted to the back of his vehicle, where an officer fitting the description of PO Rothschild frisked and searched him. Following that, he was guarded by Det. Carbone and PO Rothschild as PO Tloczkowski searched inside his vehicle. He was then released without an arrest or summons.

Det. Carbone, PO Tloczkowski, and PO Rothschild were interviewed on November 26, 2014 (encl. E-1-G-6). Even after they were presented with a photograph of § 87(2)(b) and provided with details of the incident, all three officers denied any recollection of the incident or a recollection of performing a car stop in which no arrests were made and no summonses were issued on the date of the incident. The officers also denied that they pulled over and stopped § 87(2)(b)'s vehicle on the incident date.

[illegible]

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer: _____
Title/Signature Print Date